

Satish Chandra Gaur v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 February 2017 · WRIT-C No. 8290 of 2017 · **Writ disposed; liberty to invoke Clause 6.5.**

HEADNOTE

Where a consumer disputed an electricity bill in a writ petition, the Allahabad High Court disposed of the petition with liberty to invoke Clause 6.5 of the U.P. Electricity Supply Code, 2005, the statutory remedy identified by the respondents.

FACTUAL SUMMARY

Satish Chandra Gaur petitioned the Allahabad High Court in Writ-C No. 8290 of 2017 against the State of U.P. and others, disputing an electricity bill issued by the respondents. Counsel for the respondents submitted that the petitioner had a statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench of Dilip Gupta and Siddhartha Varma, JJ. did not examine the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-statutory-remedy

HOLDING

A consumer who disputes an electricity bill is to invoke the statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005; the writ is disposed of with liberty to do so. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

Where a consumer disputed an electricity bill in a writ petition, the Allahabad High Court disposed of the petition with liberty to invoke Clause 6.5 of the U.P. Electricity Supply Code, 2005, the statutory remedy identified by the respondents. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL

Writ disposed without examining the bill; petitioner relegated to Clause 6.5. ¶ 1